

Devendra Singh v. State of U.P. And 4 Others

High Court of Judicature at Allahabad · Division Bench · 24 January 2025 · 2025:AHC:12623-DB · WRIT - C No. - 207 of 2025 · **Writ disposed; petitioner relegated to Clause 6.14 instalment machinery.**

HEADNOTE

A consumer seeking a writ that an electricity bill of Rs.5,43,955 be accepted in easy instalments was relegated to Clause 6.14 of the U.P. Electricity Supply Code, 2005, which the Court treated as complete machinery for fixing instalments. If the petitioner approached the relevant authority within ten days, the instalment-facility exercise was to be completed within ten days thereafter.

FACTUAL SUMMARY

Devendra Singh petitioned the Allahabad High Court for a direction that the Electricity Department accept his bill of Rs.5,43,955 in easy instalments. Counsel for the Department submitted that Clause 6.14 of the U.P. Electricity Supply Code, 2005 already furnished complete machinery for getting instalments fixed, and that the petitioner could approach the relevant authority under that clause. The Division Bench disposed of the writ with a time-bound direction to that authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for bill payment

HOLDING

Clause 6.14 of the U.P. Electricity Supply Code, 2005 provides complete machinery for getting instalments of an electricity bill fixed. A consumer seeking that facility must approach the relevant authority under that clause; the Court did not itself accept the bill in instalments, but directed that if the petitioner approached within ten days the exercise of granting the facility would be completed within ten days thereafter. ¶ 2-4

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer seeking a writ that an electricity bill of Rs.5,43,955 be accepted in easy instalments was relegated to Clause 6.14 of the U.P. Electricity Supply Code, 2005, which the Court treated as complete machinery for fixing instalments.. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO INSTALMENTS OF THE RS.5,43,955 BILL, AND ON WHAT TERMS

Left to the Clause 6.14 authority; the Court did not fix instalments on merits. ¶ 2-4